

The Kandla Harbour Craft Rules, 1955

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The Kandla Harbour Craft Rules, 1955

UNION OF INDIA

India

The Kandla Harbour Craft Rules, 1955

Rule THE-KANDLA-HARBOUR-CRAFT-RULES-1955 of 1955

Published on 1 October 1955

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The Kandla Harbour Craft Rules, 1955

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2012.

S.R.O. 2143, dated 1st October, 1955. - In exercise of the powers conferred by Cl. (r) of sub-rules (2) of Sec. 6 of the Indian Port Act, 1908 (15 of 1908), the Central Government hereby makes the following rules, the same having been previously published as required by sub-section (2) of the said section, namely :

1.

Short title and application.

- (i) These rules may be called the Kandla Harbour Craft Rules, 1955.

(ii)

They shall apply to the Port of Kandla.

2.

Savings.

- Nothing in these rules shall apply to any craft coming from any system of inland navigation into the Port of Kandla.

3.

Definitions.

- In these rules, unless the context otherwise requires

(a)

"harbour craft" means any flat or cargo, passenger or other boat whether propelled by oars or mechanical power plying for hire or not and whether regularly or only occasionally;

(b)

"port" means the port of Kandla, as defined under the provisions of Sec. 4 of the Indian Ports Act, 1908 (15 of 1908);

(c)

"registering officer" and "licensing officer" mean the Deputy Conservator of the Port of Kandla;

(d)

"tindal" includes any person in charge of a harbour craft;

(e)

"licensed harbour craft" means any harbour craft licensed under these rules; and

(f)

"owner" when used in relation to a harbour craft includes any part owner, agent or mortgagee in possession thereof.

4.

Harbour craft to be licensed.

- No person shall, whether as owner, tindal, or servant, use any harbour craft to carry goods or passengers to or from any vessel at the port or from place to place, or operate within the port for whatever purpose unless the harbour craft has been duly licensed under these rules. A harbour craft licensed to ply between a vessel and the shore may also ply from place to place within the port without a separate licence :

Provided that nothing in this rule shall apply to,

(i)

boats forming part of the equipment of a ship or steamer; or

(ii)

floating crafts belonging to the said Port;

(iii)

any harbour craft maintained solely for purposes of pleasure :

Provided further that the registering officer may, if he so thinks fit, by order in writing direct that the provision of the first proviso shall not apply to any boat or craft or shall apply to such boat or craft subject to such conditions and restrictions as may be specified in the order.

5.

Licensing of harbour craft.

- (i) Every application for the licensing of a harbour craft under rule 4 shall be made to the licensing officer in writing and shall furnish the following particulars namely :

(a)

the owner's name and address in full and if the owner is a minor, the name and address of his guardian also;

(b)

the name and address of the agent, if any, duly authorised by the owner to act on his behalf;

(c)

the name of the tindal whom the owner proposes to place incharge of the harbour craft; and

(d)

the nature of the licence required applied for, that is to say, whether the licence is required for a passenger boat or for a cargo boat or for any other purpose.

(ii)

On receipt of an application for licence, under sub-rule (i) the licensing officer shall, on payment of fees prescribed in rule 30 survey and measure the harbour craft, or cause it to be surveyed and measured in the presence of the owner or

of any person duly authorised for the purpose by such owner, and grant a licence in Form Won being satisfied that the craft is seaworthy and fit for service at the port, or upon the production of a certificate in writing from the officer who surveyed the craft certifying

(a)

that such craft is seaworthy, properly equipped and suited for the purpose for which the licence is required;

(b)

the number of passengers that such craft is capable of carrying under all conditions;

(c)

the number of crew required for safe navigation of such craft; and

(d)

that the equipment of such craft is in good order and condition.

(iii)

Harbour craft possessing fishing licence issued by the Chief Commissioner for Kutch shall also apply for a licence under the rules before commencing fishing operations. Such crafts shall observe the following special precautions in addition to the other rules prescribed for other craft, namely :

(a)

the fish shall be brought and landed only at the appointed places;

(b)

wharfage charges at the rate specified in the Schedule of rates in force shall be paid on landing;

(c)

the licensee shall abide by the rules and regulations of the port in respect of plying the craft and using the landing places;

(d)

the licensee shall observe all formalities required by the Customs Authority and the Government of Kutch for carrying out the operation of fishing and removal of the fish to the town for either consumption locally or for onward railing into the Hinterland;

(e)

the licence shall be cancelled or withdrawn at the discretion of the licensing officer without assigning any reason whatsoever and at any time by giving an intimation in writing to the licensee.

(f)

the licensee shall be liable for any damage, loss, etc., if any caused to the Government property in the course of his fishing operation within the Port Limits, and

(g)

no fishing shall be permitted in the whole of Kandla Creek and in such parts of the approaches to the Creek as may be laid down from time to time by the licensing officer when necessary for navigational purposes.

(vi)

For purposes of the survey and measurement prescribed in sub-rule (ii), the owner shall cause the harbour craft to be brought to such place as the licensing officer may direct.

5.

-A. Duration of Licences.

(1)

Subject to the provisions of these rules, a licence issued under these rules shall be in Form 'A' and shall be in force for a period of one year from the date of issue or until the 31st day of December, whichever is earlier.

(2)

An application for the renewal of a licence issued under these rules shall be made within fifteen days from the date of expiry of the period of its validity and the provisions of these rules shall, so far as may be, apply in relation to the renewal of a licence as they apply in relation to the issue of a licence.

(3)

If any application for the renewal of a licence is made after the expiry of the period of fifteen days referred to in sub-rule (2), the owner of the harbour craft shall be liable to pay a late fee of Rs. 2 for every month or part thereof for the period intervening between the date of expiry of the licence and the date of application for its renewal.

6.

Minor or female owners.

- If the owner of a harbour craft is a minor, the licence may be obtained by the guardian of the minor. If the owner is a woman, who according to the custom of the country does not appear in public, the licence may be obtained on her behalf by her duly authorised agent. In such cases the guardian or the agent shall be deemed to be owner for the purposes of these rules.

7.

Licence to be produced on demand.

- The owner of every registered harbour craft shall keep the licence in the possession of the tindal who shall produce it whenever called upon to do so by the registering officer or by any person duly authorised by him in that behalf.

A printed copy of these rules and any written directions issued by the registering officer for carrying the same into effect shall also be furnished by the owner to the tindal who shall, on demand, show it to any consignor or passenger by such harbour craft. The owner shall be responsible for securing that the tindal understands the said rules and direction, shall obtain a declaration from him to that effect and shall produce such declaration, whenever required by the registering officer.

8.

Distinctive numbering of licensed harbour craft.

(1)

The owner of a licensed craft shall paint or cause to be printed upon a black background, in white English figures not less than 152.4 MM in length, on a conspicuous part of the bow of such harbour craft on one side, and on the quarter of the other, the number of the harbour craft as mentioned in the licence.

(2)

No person shall paint or cause to be painted or counterfeited upon any harbour craft not duly licensed under rule 5, any such number as aforesaid or any other mark likely to induce the belief that such harbour craft has been so licensed.

9.

Change of ownership or control of licensed harbour craft.

- Where the holder of a licence in Form 'A' transfers the ownership of the harbour craft to another person, the licence shall cease to be valid on the expiry of six days from the date of such transfer, and where such holder mortgages the harbour craft to, or places it under the control of, another person, the licence shall cease to be valid on the expiry of six days from the date of such transfer unless an endorsement on the licence is made by the licensing officer that, notwithstanding the transfer, the licence shall continue to be valid.

10.

Changes in crew or carrying capacity of licensed harbour craft to be reported.

(1)

Whenever the tindal of any licensed harbour craft is changed, or any alteration in such craft is made so as to affect any of the particulars contained in the licence granted in respect of it, such change or alteration shall be forthwith reported by the owner thereof to the licensing officer :

Provided that, if such change or alteration takes place at a time when the harbour craft is away from the port, it may be reported immediately on the return of the harbour craft to the port.

(2)

In case of change of tindal or of any alteration in the harbour craft not affecting its carrying capacity, the harbour craft shall not ply until such report is made, and in case of change of tindal until the new tindal has also been produced before the licensing offices. On such report or on such report and production, as the case may be, the licensing officer shall amend the original licence held by the owner and in case of change of tindal, the register kept under rule 11.

(3)

In case of any alteration in the harbour craft affecting its carrying capacity the original licence held by the owner shall be cancelled and a fresh licence issued by the licensing officer after the craft has been re-measured, and the harbour craft shall not ply until such fresh licence has been issued.

11.

Registration of tindals.

(1)

At the time of licensing of any harbour craft under rule 5, the name of its tindal as entered into the licence and other particulars relating to him shall be entered into a book which shall be kept by the licensing officer in Form 'B'.

(2)

No person shall be employed or registered as a tindal of a licensed harbour craft if he

(a)

is not a certified officer qualified to be the master or engineer of such harbour craft in accordance with rule 31; and

(b)

is, in the opinion of licensing officer, unaccustomed to use such harbour craft or otherwise inefficient.

12.

Annual and special inspection of licensed harbour craft and crew.

-On or before the expiry of the licence the owner of every licensed harbour craft shall produce it together with its licence for inspection by the licensing officer at such place as he may appoint for the purpose. In addition to such inspection, special or partial inspections may be held by the licensing officer or by any person duly authorised by him, at such times as the licensing officer may consider necessary. At all inspections under this rule, each harbour craft shall have its full complement of crew and equipment.

13.

Repairs of licensed harbour ordered for inspection.

(1)

The owner of every licensed harbour craft shall execute such repairs thereto as the inspecting officer may direct in order to render it efficient, and no owner or other person shall use any such harbour craft or cause or permit it to be used until such repairs have been duly executed thereto and the licensing officer has granted permission for its use. For the purpose of such repairs, the owner shall cause the harbour craft to be hauled up only to such place or places on the foreshore as the licensing officer may from time to time direct.

(2)

All major repairs to the boiler, machinery or hull of a licensed harbour craft shall be carried out under the supervision of an Engineer, and Ship Surveyor of the Mercantile Marine Department, Government of India, or an officer appointed by the Conservator of the Port. The Master, owner or owners of such craft shall, before the commencement of the repairs, pay to the licensing officer a sum sufficient to cover the fees and other expenses of such Engineer and Ship Surveyor and any other officer appointed by the licensing officer. For the purpose of this sub-rule, the decision of the licensing officer as to whether a particular work should be regarded as a major repair or not shall be final.

(3)

The fees referred to in sub-rule (2) shall be calculated on the following scale, namely :

Rs.

(i)

For every vessel the gross tonnage of which does not exceed 25 tons.

60.00

(ii)

For every vessel the gross tonnage of which exceeds 25 tons but does not exceed 50 tons.

75.00

(iii)

For every vessel the gross tonnage of which exceeds 50 tons but does not exceed 75 tons.

90.00

(iv)

For every vessel the gross tonnage of which exceeds 75 tons but does not exceed 100 tons

105.00

(v)

For every vessel the gross tonnage of which exceeds 100 tons but

does not exceed 300 tons

120.00

(vi)

For every vessel the gross tonnage of which exceeds 300 tons but does not exceed 600 tons

135.00

(vii)

For every vessel the gross tonnage of which exceeds 600 tons but does not exceed 900 tons

150.00

(viii)

For every vessel the gross tonnage of which exceeds 900 tons but does not exceed 1,200 tons

180.00

(ix)

For every vessel the gross tonnage of which exceeds 1,200 tons

180.00

plus

Rs. 30 for every 300 tons or part thereof

in

excess of 1,200 tons.

(4)

The expenses referred to in sub-rule (2) shall be determined in accordance with the instruction of the Central Government in this behalf.

14.

Control of working of licensed harbour craft.

(1)

The owner of every licensed harbour craft shall provide it with such full complement of crew and with such equipment as may be determined by the licensing officer and entered into the licence. The tidal of the harbour craft shall not have on board more or less than the number of the crew prescribed in the licence for fair or foul weather according as the harbour craft plies in fair or foul weather, and shall not carry passengers or goods in excess of the number or quantity entered into the licence for the harbour craft.

(2)

Every licensed harbour craft plying within the port shall carry such number of lifebuoys as may be considered reasonable by the licensing officer and of a type approved by him. Every such harbour craft shall carry, in addition, such buoyant apparatus as may be considered necessary by the licensing officer.

All buoys and buoyant apparatus carried in pursuance of this rule shall be stowed to the satisfaction of the licensing officer and so as to be readily accessible to the persons on board.

(3)

The licensing officer shall exercise his discretion in fixing the number of crew required in a licensed harbour craft plying within the port and carrying passengers.

(4)

Where the owner of a licensed harbour craft does not desire to carry the full complement of passengers, or is not prepared, or considers it impracticable to carry the prescribed life-saving appliances, the licensing officer may endorse the licence to the effect that the number of passengers is limited accordingly.

15.

Harbour craft to render all possible services if required by Port for general safety.

- If at any time, the licensing officer or the Harbour master or an officer of the port detained by any of the above said two officers, in the event of an emergency, require the services of any harbour craft for the general safety of the port or shipping in the harbour, the master or the tidal shall immediately proceed with his craft to such place as he may be directed by word of mouth or in writing and take whatever action may be possible under the circumstances subject to

the safety of his own craft.

16.

Obstructing Port Traffic.

(1)

No tindal or any member of the crew serving in any licensed harbour craft shall, without reasonable excuse, obstruct or hinder the loading, discharging or service of such harbour craft, or of any other licensed harbour craft, or obstruct or hinder any vessel working in the port.

(2)

No tindal shall permit any licensed harbour craft in his charge to obstruct the free navigation of the port or the approaches to wharves or jetties.

17.

Observance of the rule of the road at sea.

- All licensed harbour craft, when under way, shall observe the rule of the road at sea.

18.

Refusal to ply without lawful excuse.

If the owner or the tindal incharge of a licensed harbour craft plying regularly for hire refuses to allow such harbour craft to ply for hire when required to do so, without reasonable excuse, of which the licensing officer shall, subject to the appeal provided in rule 29 be the sole judge, the licence of such harbour craft shall be liable to be cancelled.

19.

Permissible load of licensed harbour craft in fine and foul weather.

(1)

No person shall load a licensed harbour craft with passengers or with animals or other cargo in contravention of the terms of its licence.

(2)

No tindal of any licensed harbour craft shall permit any animal to be loaded in it, unless the harbour craft has been provided with sand ballast or straw sufficient to form a flat floor and unless such other requirements as may be imposed by the licensing officer in respect of the harbour craft have been complied with.

(3)

Where animals are carried in a licensed harbour craft, no other cargo or passengers shall be carried therein.

(4)

Passengers and cargo other than animals may be carried at the same time only in a licensed harbour craft propelled by mechanical or electrical power.

(5)

Harbour craft licensed for the carriage of passengers shall be so fitted that sufficient seating space is available for each passenger; awning and weather cloths shall also be provided, where necessary, to give protection to passengers from sun and weather respectively.

20.

Power of tindal to prevent overloading.

- Whenever the number of passengers or the quantity of cargo in a licensed harbour craft exceeds the number or quantity entered into the license the tindal shall, before starting from the vessel or from the shore, require any passenger to leave the harbour craft or any consignor, consignee, or shipping or landing agent concerned to remove from the harbour craft the whole or any part of the cargo.

21.

Attention to certain signals required of tindals.

- The owner of every licensed harbour craft shall instruct the tindal of such harbour craft to pay immediate attention to the harbour craft muster flag-a square blue flag, with four horizontal red strips-which will be displayed on the Port Flagstaff when the licensing officer desires to carry out an inspection under Rule 12.

22.

Licensed harbour craft not to interfere with moorings or approaching vessels before they anchor.

- No person in charge of or navigating any licensed harbour craft shall attempt to make such harbour craft fast to any mooring or mark buoy, or go alongside of a vessel approaching an anchorage before such vessel has anchored or has

moored to a buoy.

23.

Fishing boats not to be allowed near a cargo boat or alongside a vessel.

(1)

No person in charge of or navigating a licensed cargo boat shall, when such cargo boat is plying between a vessel and the shore, allow a fishing or any other boat to approach within 10 metres of such cargo boat.

(2)

No person in charge of or navigating a fishing boat shall allow it to go alongside a vessel at any time.

Note. - In this sub-rule, the expression "alongside a vessel" shall mean a radial distance of 100 metres from any part of such vessel.

(3)

If any licensed harbour craft is found by the licensing officer to have contravened the provision of sub-rule (1) or (2), he may

(a)

cancel the licence issued in respect of the harbour craft; and

(b)

direct that the tindal at fault shall not be employed in any capacity in any licensed harbour craft and that his name shall be removed from the Register of Tindals, and if any owner employs any such tindal contrary to the Licensing Officer's directions under Cl. (b), the Licensing Officer may cancel all or any of the licences in Form 'A' held by the owner.

(4)

If a licensed harbour craft is engaged or is about to be engaged by any owner or person in charge of such harbour craft or any other person for smuggling or for any activity, other than those for which such harbour craft is licensed, the licence issued in respect of such harbour craft shall, without prejudice to any other action that may be taken against such owner or other person be forfeited;

and, for a period of three years from the date on which the licence is forfeited, no licence shall be issued under these rules for any harbour craft belonging to such owner or other person, or belonging to a Hindu undivided family in which such owner or other person is the karta:

Provided that before refusing to issue a licence under this sub-rule, the Licensing Officer shall give an opportunity of being heard to the person concerned.

24.

Landing and shipping of passengers and goods to be within the port.

- All passengers and goods shall be landed or shipped in such places within the limits of the port as the Licensing Officer may appoint and no person shall ship or land passengers or goods outside such place unless the sanction of the Port and Customs Officers at the Port have been previously obtained.

25.

Rates of harbour craft hire.

-No owner, tindal or any member of the crew of a licensed harbour craft licensed to carry passengers or goods for hire, and no person deputed by the owner of such harbour craft, shall demand a rate of hire exceeding that sanctioned by the Central Government; and no owner, tindal or member of the crew of such harbour craft shall demand or accept any gratuity or present from any passenger during the course of its trip between any vessel and the shore or from place to place whether within or without the port.

26.

Prohibition of employment of tindals and crew contravening the rules.

- If, in the opinion of the Licensing Officer, any tindal or any member of the crew of a licensed harbour craft has contravened any of these rules, the owner of the harbour craft shall on being required so to do by the Licensing Officer, dismiss or suspend for such period as the Licensing Officer may specify in that behalf, such tindal or member of the crew from his employment.

Any action taken by the Licensing Officer under this rule shall be without prejudice to any other action which he may take in respect of the contravention of the rule.

27.

(1)

The Licensing Officer may, where he is satisfied that it is so expedient to do, refuse to grant a licence to any harbour craft.

(2)

No licence shall be granted to any harbour craft which has failed to comply with any order requiring it to render such service to the Port as the Port may reasonably expect of it.

28.

Revocation of licences.

- If, in the opinion of the Licensing Officer the owner of any licensed harbour craft has contravened any of these rules, the Licensing Officer may, without prejudice to any other action that may be taken against such owner in respect of the contravention, cancel all or any of the licences in Form 'A' held by the owner.

29.

Appeal from Licensing Officer's order.

- An appeal shall lie from any order of the Licensing Officer passed under these rules, to the Conservator of the Port. Such appeal shall be preferred in writing within seven days after the order of the Licensing Officer has been communicated in writing to the party or parties concerned, and the decision of the Conservator thereon shall be final.

30.

Fees.

- The following fees shall be payable by the owner of a harbour craft applying for a licence under these rules, namely :

(i)

for the survey and measurements of each harbour craft 0.25 paise
for registered or gross ton/or part thereof.

Rs.

(ii)

for issue or renewal of a licence
2.00

(iii)

for endorsing change of tinal
2.00

(iv)

for registration of tinal
2.00

(v)

for registration of boat
2.00

Provided that-

(a)

in respect of canoes or rowing boats, only half the above fees shall be payable;

(b)

where the harbour craft is found unseaworthy at the time of survey or at the time of annual inspection, only half the fee shall be payable;

(c)

where the harbour craft is a motor boat or steam boat in respect of which a certificate of survey under the Indian Merchant Shipping Act, 1923, or the Inland Steam-vessels Act, 1917, is held by the owner, no fee shall be payable for survey and measurement, but if no such certificate of survey is held, a fee of Rs. 32 shall be payable; and

(d)

the fee for the issue of a duplicate licence shall be half of the fee for the original licence, provided the latter is proved, to the satisfaction of the Licensing Officer, to have been lost or mislaid, or has been rendered illegible.

31.

Special provision applicable to steam boats and motor boats licensed under these rules.

(1)

Every steam boat licensed under these rules shall, when in use, whether plying for hire or not, have on board the

following certificated officers.

(i)

if she has engines of not less than 100 N.H.P.

(a)

as her master, a person possessing a first class master's certificate granted under the Inland Steam-vessels Act, 1917, or any such certificate granted either under the Indian Merchant Shipping Act, 1923, or the Merchant Shipping Act, 1894, or under such regulations as the Central Government may, from time to time, prescribe, and

(b)

as her engineer, a person possessing an engineer's certificate granted under any of the aforesaid Acts or regulations.

(ii)

if she has engines of less than 100 N.H.P., but not less than 40 N.H.P.-

(a)

as her master, a person possessing a second-class master's certificate granted under the Inland Steam-vessels Act, 1917, or any such certificate as is referred to in sub-clause (a) of Cl. (i), and

(b)

as her engineer or engine-driver, a person possessing a first-class engine-driver's certificate granted under the Inland Steam-vessels Act, 1917, or an engine-driver's certificate granted under the Indian Merchant Shipping Act, 1923, or under such regulations as the Central Government may, from time to time, prescribe or any such certificate as is referred to in sub-clause (b) of Cl. (i):

Provided that a steam boat shall be deemed to have complied with this clause if she has, as her master and engineer or engine-driver a person possessing both a certificate referred to in sub-clause (a) and a certificate referred to in sub-clause (b); and

(iii)

if she has engines of less than 40 N.H.P.

(a)

as her master, a person possessing a serang's certificate granted under the Inland Steam-vessels Act, 1917, Indian Merchant Shipping Act, 1923 or the Merchant Shipping Act, 1894 or any such certificate as is referred to in sub-clause (a) of Cl. (ii); and

(b)

as her engineer or engine-driver, a person possessing a second-class engine-driver's certificate granted under the Inland Steam - vessels Act, 1917, or any such certificate as is referred to in sub-clause (b) of Cl. (ii);

Provided that a steam boat shall be deemed to have complied this clause, if she has, as her master and engineer or engine-driver a person possessing both a certificate referred to in sub-clause (a) and a certificate referred to in sub-clause (b).

(2)

Every motor boat licensed under these rules shall, when in whether plying for hire or not, have on board the following certificate officers,

(i)

if she has engines of not less than 565 B.H.P.

(a)

as her engineer, a person possessing a motor engineer's certificate granted under the Inland Steam-vessels Act, 1917, Indian Merchant Shipping Act, 1923 or the Merchant Shipping Act, 1894, or a certificate as a first-class or second-class engineer of sea-going motorship granted either under the Indian Merchant Shipping Act, 1923, or the Merchant Shipping Act, 1894, or under such regulations as the Central Government may, from time to time, prescribe;

(b)

in case the engines are used for propulsion as her master, person possessing a first-class master's certificate granted under the Inland Steam-vessels Act, 1917, or a master, certificate granted either under the Indian Merchant Shipping Act, 1984, or the Merchant Shipping Act, 1894 or under such regulation as the Central Government may, from time to time, prescribe.

(ii)

if she has engines of less than 565 B.H.P., but not less than 226 B.H.P.-

(a)

as her engineer or engine-driver, a person possessing a first-class motor engine-driver's certificate granted under the Inland Steam vessels Act, 1917, Indian Merchant Shipping Act, 1923 or the Merchant Shipping Act, 1894, or a certificate of an engine-driver of a sea-going motorship granted under the Indian Merchant Shipping Act, 1923 or under such regulations as the Central Government may, from time to time, prescribe or any such certificate as is referred to in sub-clause (a) of Cl. (i); and

(b)

in case the engines are used for propulsion, as her master, a person possessing a second-class master's certificate granted under the Inland Steam-vessels Act 1917 or Indian Merchant Shipping Act, 1923 or the Merchant Shipping Act, 1894, or any such certificate as is referred to in sub-clause (b) of Cl. (i); and

(iii)

if she has engines of less than 226 B.H.P.

(a)

as her engineer or engine-driver a person possessing a second-class motor engine-driver's certificate granted under the Inland Steam-vessels Act, 1917 or Indian Merchant Shipping Act, 1923 or the Merchant Shipping Act, 1894, or any such certificate as is referred to in sub-clause (a) of Cl. (ii); and

(b)

in case the engines are used for propulsion, as her master, a person possessing a serang's certificate granted under the Inland Steam-vessels Act, 1917 or Indian Merchant Shipping Act, 1923 or the Merchant Shipping Act, 1894 or any such certificate as is referred to in sub-clause (b) of Cl. (ii).

Provided that a motor boat having engines of not more than 40 B.H.P. may have as her engineer or engine driver, a person holding a permit granted by the Central Government or by any person duly authorised by the Central Government in this behalf.

Provided also that a motor boat having engines of not more than 20 B.H.P., the length of which measures from the fore part of the stern to the after part of the stern post does not exceed 9.14 metres may have as her master and engineer or engine-driver, a person possessing both a certificate referred to in sub-clause (a) and a certificate referred to in sub-clause (b);

Provided further that a motor boat having engines of not more than 20 B.H.P., the length of which measured as aforesaid does not exceed 9.14 metres, which is used exclusively for personal recreation by the owner or his family or friends need not carry a certificated master or engineer but may be navigated by the owner or any other person possessing a permit granted by the Central Government or by any person duly authorised by the Central Government in this behalf.

(3)

Any person who has served as master, serang, engineer, or engine-driver of a steam boat or motor boat plying in the port for a period of 3 years on the 1st October, 1954, and is not in possession of the certificate of competency required under sub-rule (1) or sub-rule (2), as the case maybe, may be granted by an officer duly authorised by the Central Government in this behalf, without examination and on payment of the fees prescribed by the Central Government, a certificate to the effect that he is, by reason of his having so served, competent to act as a master, serang, engineer, or engine-driver on board such steam boat or motor boat while plying in the port.

(4)

The Central Government may in special circumstances

(a)

exempt any class of steam boats or motor boats from the requirements of sub-rule (1) or sub-rule (2), as the case may be; and

(b)

lay down the qualifications required of the officers employed on such boats.

32.

(1)

Every motor boat licensed under these rules shall be provided with a sand box and an approved patent fire extinguisher of suitable capacity for extinguishing fire, and the owner shall keep it free from oil refuse.

(2)

Noisy engines of all motor boats, licensed under these rules while plying within the port, shall be fitted with efficient silencers.

Form 'A'

[(See rule 5 (ii)]

Licence granted toowner of harbour craft measuring.....metres long.....metres broad and.....metres deep. Registered tons.

To carry cargo (other than animals) and/or passengers, or animals to the extent specified below under the restrictions and subject to the penalties laid down in the Harbour Craft Rules for the Port of Kandla, 1955.

Date

of Registry

Name

number and description of harbour craft

Rig

and equipment

When

built and where

When

repaired last and in what condition

Cargo

without passengers

Names

of name

Occupation

Place

or Places of residence

Name

Place

of residence

Period

for which the licence is to be in force

Remarks

Number of animals

and presumed weight

Weight of cargo

other than animals

Number of

passengers without cargo

Number of crew

1

2

3

4

5

6

7

8

9

10

11

12

13

14

15

16

Fair weather

Foul weather

Fair weather

Foul weather

Fair weather

Foul weather

Tindal

Lascars

In

fair weather

In foul weather

In

fair weather

In foul weather

In

fair weather

In foul weather

Tindal

Lascars

Note.- Two

children under 12 years of age will be deemed as one adult.

Dated

.....19

Extended

to19

Extended

to19

Extended

to19

LICENSING

OFFICER

Form 'B'

[See rule 11 (1)]

Register showing the names, ages, places of residence and thumb impression of tindals employed in the Port of Kandla, for the year 197.

Date

of registry

Number

of harbour craft

Names

Age

Places

of residence

Thumb

impressions

Remarks

Years.

Months

Days

LICENSING OFFICER

Related AI tags, queries and research notes

Translation